

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-04

CHINA UNITED LINES, LTD,
COMPLAINANT,

v.

AMAZON.COM SERVICES LLC

and

AMAZON LOGISTICS INC.

and

BEIJING CENTURY JOYO COURIER SERVICE CO., LTD.

RESPONDENTS.

**COMPLAINANT CHINA UNITED LINES, LTD.'S
MOTION FOR ORDER INSTRUCTING AMAZON TO REMOVE
"ATTORNEYS' EYES ONLY" DESIGNATIONS**

This case concerns the integrity and stability of ocean shipping rates, and the havoc that will be injected into the market if shippers such as Amazon are allowed to cancel service contracts at their whim when those contracts become uneconomical for them and avoid their liquidated damages commitments thereunder by invoking breaches of confidentiality, which either did not occur or which are not legally actionable (due to, for example, Amazon's own publicity of its relationship with the carrier, first). Complainant China United Lines, Ltd. ("China United") respectfully moves, pursuant the Protective Order issued in this proceeding¹, for an order instructing Respondents Amazon.com Services LLC, Amazon Logistics Inc., and Beijing Century Joyo Courier Service Co., LTD ("Amazon") to remove the "Attorneys' Eyes Only" ("AEO") designations from 109 documents it has produced in discovery.

I. INTRODUCTION AND SUMMARY

Respondent Amazon has designated 109 documents within its production as "Attorneys' Eyes Only", under the argument that such documents contain "contract rates or capacity commitments Amazon negotiated with CUL's competitors."² The truth of the matter is that these documents contain stale information from 2022 and 2023, with no current commercially sensitive value, and so there is no basis for Amazon's restriction on China United's lawyers' ability to share these documents with the managers at China United. The managers of China United are actively involved in this matter, and they desire frequent and detailed updates about this important case. Amazon is not entitled to unilaterally restrict and handcuff China United's attorneys' ability to confer with China United's management, especially when there is no harm in doing so and when the documents at issue will remain confidential under the entered Protective Order in this case.

¹ The Stipulated Protective Order, Received by the Commission on August 11, 2025 (Docket Entry No. 34), allows a party to file a motion to challenge a confidentiality designation if meet and confer efforts between the parties do not resolve the dispute.

² November 21, 2025 email from Michael Scanlon, attorney for Respondent Amazon.

Amazon further argues that documents marked as AEO “are not relevant”,³ oddly alleging that this further justifies the AEO markings. Even if “relevance” was the standard for determining whether AEO designations are proper (it is not), the documents are clearly relevant. This case concerns Amazon’s decision to cancel its two-year service contract commitment with China United when market rates fell, and then its wrongful attempt to invoke a “for cause” cancellation (after first declaring a “for convenience” cancellation) so that it could avoid paying \$32 million in agreed-upon liquidated damages (under the service contract). Amazon’s decision to terminate its relationship with China United was motivated by Amazon’s failed bet on future market rates, and this litigation arises from Amazon’s tortured and failed attempt to avoid paying liquidated damages. The rates and terms being offered by other ocean carriers in 2022 and 2023, which motivated Amazon’s decisions in this case, form a central aspect of this litigation. From the documents produced thus far by Amazon, it is clear that (1) Amazon publicly advertised its relationship with China United (before China United made any public mention of Amazon), (2) the relationship between China United and Amazon was very public before China United made its supposedly offensive WeChat post, (3) at least one Amazon employee commented that she “loved” the co-branding of Amazon and China United, and (4) Amazon invoked a “for cause” termination when it had no basis to do so (hoping to bully China United into compliance and settlement). In addition, China United is entitled to discover whether other ocean carriers, who offered lower rates, may have allegedly breached similar non-disclosure terms with Amazon, but with no repercussions from Amazon (because their rates were deemed advantageous to Amazon). Indeed, and contrary to Amazon’s nonsensical “relevance” argument, the rates and contract terms offered by other carriers is an important aspect of this case, and China United’s lawyers should be free to share produced documents regarding such rates with China United management.

In summary, the instant Motion concerns the inappropriateness of designations made by Amazon pursuant to the Attorneys' Eyes Only provision in the Stipulated Protective Order (Docket

³ Id.

Entry No. 34), with respect to Amazon's references to third party ocean liner information from at least two years ago. *E.g.* AMZ-00000538-543 (2022-2023 Ocean Tender Awards); AMZ-00000650-661 (2023 Bid Strategy); AMZ-000002234-2259 (2023 Carrier Contract Negotiations). There is no reason why the attorneys for China United cannot share documents containing market information from many years ago with China United managers. Because the challenged documents do not satisfy the high standard required for AEO treatment, the designation should be lifted. China United's attorneys met and conferred with Amazon's attorneys on this issue, and Amazon's attorneys indicated that Amazon would not lift the AEO designations, thus forcing China United to file this motion.

II. LEGAL STANDARD

Under the Federal Maritime Commission ("FMC") rules, a party may seek confidential treatment for materials only upon a showing of "good cause" and that the information constitutes "highly confidential commercial information" whose disclosure would cause specific, serious competitive harm. *See* 46 C.F.R. § 502.5, § 502.141(j); *see also* Fed. R. Civ. P. 26(c)(1) ("The court may, for good cause, issue an order to protect a party or person from annoyance, embarrassment, oppression, or undue burden or expense . . . [by] requiring that a trade secret or other confidential research, development, or commercial information not be revealed or be revealed only in a specified way.") **Generally, courts reserve Attorneys' Eyes Only designations for especially sensitive information, particularly when a competitor would receive such information.** *See Westbrook v. Charlie Sciara & Son Produce Co., Inc.*, No. 07–2657, 2008 WL 839745, at *4 (W.D. Tenn. Mar. 27, 2008) (unpublished).

"[W]here a party challenges the designation of documents under a stipulated protective order, the party seeking to maintain confidentiality 'has the burden of establishing that there is good cause to continue the protection of the discovery material'" under Federal Rule of Civil Procedure 26(c)(1). *In re AIS GmbH Aachen Innovative Sols.*, No. 5:16-mc-80094-EJD, 2021 WL 616502, at *2 (N.D. Cal. Feb. 16, 2021) (quoting *In re Roman Catholic Archbishop of Portland in Oregon*, 661 F.3d 417, 424 (9th Cir. 2011)). To show good cause, the party opposing de-

designation must establish that “specific prejudice or harm will result if no protective order is granted.” *Phillips ex rel. Ests. of Byrd v. General Motors Corp.*, 307 F.3d 1206, 1210–11 (9th Cir. 2002). “Broad allegations of harm, unsubstantiated by specific examples or articulated reasoning” are not enough. *Beckman Indus., Inc. v. Int’l Ins. Co.*, 966 F.2d 470, 476 (9th Cir. 1992) (quoting *Cipollone v. Liggett Grp., Inc.*, 785 F.2d 1108, 1121 (3rd Cir. 1986)). Trial courts have “broad discretion” in making good cause determinations. *Bromgard v. Montana*, No. CV–05–32–BLG–RFC–CSO, 2007 WL 2710379, at *6 (D. Mont. Sept. 13, 2007) (citing *Seattle Times Co. v. Rhinehart*, 467 U.S. 20, 36 (1984)). **Moreover, because “AEO designations can make litigation very onerous,” they should be used “sparingly and only where absolutely necessary.”** See *Defreitas v. Tillinghast*, No. 2:12-CV-00235-JLR, 2013 WL 209277, at *11 n.1 (W.D. Wash. Jan. 17, 2013) (emphasis added).

III. ARGUMENT

A. Respondent Amazon Has Not Demonstrated Good Cause for AEO Protection that Shows Particularized Harm

Amazon has done very little in this case without being prodded and asked by China United. For example, much of Amazon’s initial production contained many redactions for alleged third party privacy. When China United pointed out that such redactions were inappropriate, given the Protective Order, Amazon made a re-production with some of the redactions removed. This production included 109 documents with the designation of “Attorneys’ Eyes Only”. Amazon argues that the information contained in these documents concerns rate information Amazon received from other carriers in Amazon’s search to replace China United.

There is no basis for Amazon’s use of AEO designations on these documents: the third party references are each at least two years old and are no longer competitively relevant. Specifically, Amazon argues its AEO designations are necessary because "Amazon is reluctant to turn over its partners’ confidential commercial information to a direct competitor without any

showing of relevance or need."⁴ Amazon is turning the required standard for AEO designation on its head. Amazon is required to show good cause; There is no requirement whatsoever for China United to show "relevance or need" and regardless, just the fact that Amazon produced the documents in response to discovery requests demonstrates relevance. Therefore, it is Amazon's burden, not China United's, "to establish good cause and explain with particularity why the information is not stale." *Glob. Material Techs., Inc. v. Dazheng Metal Fibre Co.*, 133 F. Supp. 3d 1079, 1085 (N.D. Ill. 2015). As explained in *Glob Material Techs, Inc.*:

With respect to the staleness question, Tru Group has not explained with any particularity how allowing GMT employees to view years-old invoices and specifications could give GMT any unfair competitive advantage in the current market or lead to unfair leverage over the customers identified in the documents. Nor has it submitted any affidavits supporting its assertions. The relevant documents are all dated between October 2009 and August 2011, making even the most recent pricing data conveyed therein more than four years old. (R. 238, Pl.'s Mem. Sealed Exs. A & B.) Tru Group has not explained how four year-old pricing information could cause the kind of "unwarranted commercial harm" that would justify preserving its AEO designation.

...

Particularly, Tru Group has made no attempt to show that the information in these documents could be extrapolated by GMT to predict future pricing strategies or otherwise give it a current competitive advantage. *Contrast with Stanislaus Food Prods. Co. v. USS-POSCO Indus.*, 1:09-cv-00560-LJO-BAM, 2012 WL 6160468, at *2 (E.D.Cal. Dec. 11, 2012). In short, Tru Group's broad allegations of harm are insufficient to show that the years-old information poses any on-going competitive threat to the defendants or any unwarranted commercial advantage to GMT. *See Chicago Mercantile Exchange*, 276 F.R.D. at 241.

133 F. Supp. 3d at 1085 (emphasis added). Ultimately, Amazon must show that "specific prejudice or harm will result" from de-designation. *Phillips ex rel. Ests. of Byrd v. General Motors Corp.*, 307 F.3d 1206, 1210–11 (9th Cir. 2002). Amazon's argument that the outdated information from its partners is somehow detrimental or revealing is too tenuous to meet this standard. *See Aqua*

⁴ November 17, 2025 email from Michael Scanlon, attorney for Respondent Amazon.

Dots, 2009 WL 1766776, at *2; *see also In re: Bank One*, 222 F.R.D. at 588 (noting that party “must attempt to winnow out properly confidential information in order to justify sealing” (internal quotation omitted)); *United States v. Int’l Bus. Mach. Corp.*, 67 F.R.D. 40, 46 (S.D.N.Y.1975) (noting that “disclosure of two-and-a-half-year-old sales data” will not result in a “clearly defined, serious injury”). Indeed, Amazon and China United are not competitors, and information at issue is many years old, and lifting the AEO designations will NOT lift their designation as “confidential”. Amazon’s position on AEO, therefore, makes no sense.

Amazon faces no injury, let alone a clearly defined and very serious injury, by disclosure of the 109 documents at issue to managers at China United. Instead, China United will face serious injury by these designations as they preclude China United from receiving fulsome and accurate updates in this proceeding. The rates Amazon received from other carriers and Amazon’s search to replace China United are highly relevant to China United’s claim that Amazon violated the Shipping Act (as discussed in detail above). Thus, the hypothetical possibility that China United will gain some unspecified competitive advantage from the outdated information is too speculative to show that specific prejudice or harm will result from removing the AEO designations.

B. The AEO Designation Prejudices Complainant’s Ability to Prosecute the Case

There is an additional consideration in determining whether the continued AEO designation is appropriate, to weigh the risks to the Amazon from disclosure against China United’s need to view the information, in order to litigate its claims. *Glob. Material Techs., Inc.* 133 F. Supp. 3d at 1085. Great care must be taken to prevent the unnecessary curtailment of a party’s trial preparation. *Farnsworth v. Procter & Gamble Co.*, 758 F.2d 1545, 1547 (11th Cir.1985). Trial preparation and trial itself are made significantly more difficult and expensive when a party’s attorney is unable to share with the party facts that are material to its prosecution of the case. *See Motorola*, 2010 WL 2179170, at *5. Because Amazon cannot show that it will be harmed by allowing China United management to view the information at issue, it also cannot show that the added difficulty and expense in litigating the claims in this matter are justified. China United’s managers are uniquely positioned to interpret operational, contractual, and industry-specific

information contained in the documents. Preventing China United's managers from reviewing them:

1. Hinders counsel's ability to prepare for depositions and prepare the case,
2. Impairs the ability to evaluate damages, and
3. Obstructs meaningful settlement discussions.

By restricting attorney-client discussion of third party information which goes to the heart of the dispute, Amazon is directly hindering China United's ability to prosecute its claim. *Brown Bag Software v. Symantec Corp.*, 960 F.2d 1465, 1470 (9th Cir.1992) (explaining that where trade secrets or other confidential commercial information is involved, the court will balance the risk of disclosure to competitors against the risk that a protective order will impair prosecution or defense of the claims.). Therefore, FMC and Federal discovery rules require a balance between protection and fairness. Here, Amazon's AEO designations clearly disrupt that balance. *See Motorola, Inc. v. Lemko Corp.*, 08 CV 5427, 2010 WL 2179170, at *5 (N.D.Ill. June 1, 2010) (explaining that the AEO designation must be used selectively because discovery and trial preparation are made significantly more difficult and expensive when an attorney cannot make a complete disclosure of relevant facts to a client and because it leaves the litigant in a difficult position to assess whether the arguments put forward on its behalf are meritorious.).

C. A More Limited Confidentiality Designation is Sufficient

To the extent any document contains current commercially sensitive information (which has yet to be demonstrated), the existing Confidential designation—rather than AEO—adequately protects Amazon's interests. The Stipulated Protective Order already prohibits dissemination beyond the parties, and review by China United would create *no* competitive risk to Amazon or the third-party liners (as the information at issue is stale). None of the materials with the designations AEO contain current proprietary information, strategic plans, pricing, or other categories that would justify preventing China United from reviewing them. Amazon's justification consists only of boilerplate assertions of confidentiality and alleged non-relevance, which are insufficient under FMC and Federal rules. *See Defreitas v. Tillinghast*, No. 2:12-CV-00235-JLR,

2013 WL 209277, at *11 n.1 (W.D. Wash. Jan. 17, 2013) (“AEO designations can make litigation very onerous,” they should be used “sparingly and only where absolutely necessary.”).

IV. CERTIFICATION OF GOOD-FAITH CONFERENCE

Counsel for China United certifies that they met and conferred with Amazon on November 6, 2025, November 17, 2025 and November 19, 2025 in an effort to resolve this dispute informally. See Cullinane Declaration, ¶ 3. Amazon declined to modify its AEO designations.

V. CONCLUSION

For the reasons stated above, Claimant China United Lines, Ltd. respectfully requests that the FMC issue an order:

- (1) Compelling Amazon to remove the AEO designation from all produced documents;
- (2) Requiring Amazon to re-produce such documents with, at most, a “Confidential” designation; and
- (3) Award China United Lines its attorneys’ fees incurred in bringing this Motion.

Dated: December 10, 2025

Respectfully submitted,

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CERTIFICATE OF SERVICE

**China United Lines, Ltd. v. Amazon.com Services, LLC, et al.
Docket No. 25-04**

I HEREBY CERTIFY that On December 10, 2025, I served true and correct copies of the foregoing **MOTION FOR ORDER INSTRUCTING AMAZON TO REMOVE ATTORNEYS' EYES ONLY DESIGNATIONS** via electronic mail on:

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Counsel for Respondents

I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct.

Executed on December 10, 2025, at Costa Mesa, California.



David P. Collins